

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

WAN HAI LINES, LTD., *Respondent*.

DOCKET NO. 26-06

Served: September 15, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

INITIAL DECISION DISMISSING COMPLAINT WITH APPROVED SETTLEMENT AGREEMENT¹

On August 11, 2026, Complainant Samsung Electronics America, Inc. (“SEA”) and Respondent Wan Hai Lines, Ltd. (“Wan Hai”) filed a Joint Motion for Approval and Confidential Treatment of Settlement Agreement which requested that their confidential settlement agreement be approved but proposed an unusual two-step process for the ultimate disposition of the proceeding. Specifically, the parties proposed that their confidential settlement agreement first be approved, and then later the proceeding be dismissed with prejudice upon the filing of a motion for dismissal by Complainant once the agreed upon settlement amount had been paid.

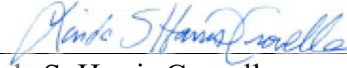
On August 20, 2026, an Order Granting Joint Motion for Approval of Settlement Agreement was issued. The substantive terms of the settlement agreement were approved, and the parties were ordered to file a dismissal motion by August 31, 2026.

On August 31, 2026, SEA filed a Motion to Dismiss with Prejudice (“Motion”) pursuant to the terms of the parties’ settlement agreement. The motion states that “SEA confirms that the settlement amounts have been received from Wan Hai and now, accordingly, wishes that this case be dismissed with prejudice.” Motion at 2.

Upon consideration of the motion, the settlement agreement, and the record, and good cause having been stated, it is hereby:

¹ This initial decision will become the decision of the Commission in the absence of review by the Commission. Any party may file exceptions to this decision within twenty-two days of the date of service. 46 C.F.R. § 502.227.

ORDERED that Complainant's Motion to Dismiss with Prejudice be **GRANTED**. The Verified Complaint is hereby **DISMISSED WITH PREJUDICE**.

A handwritten signature in blue ink, reading "Linda S. Harris Crovella", is positioned above a horizontal line.

Linda S. Harris Crovella
Administrative Law Judge